

Court No. - 2

Case :- WRIT - C No. - 55892 of 2009

Petitioner :- M/S Quereshi Cold Storage And General Mills

Respondent :- Paschimanchal Vidyut Vitram Nigam Ltd. & Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,A.N. Singh

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Pankaj Kumar Shukla, Advocate appearing for the respondents No. 1 and 2 and Sri A.N. Singh, learned counsel appearing for the respondent No. 3.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 1.7.2009, a copy of which has been filed as Annexure 2 to this writ petition, passed by the respondent No. 2. Learned counsel for the petitioner submits that security is being asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 23rd June, 2009 in Writ Petition No. 30582 of 2009 (M/s Vehlina Steels & Alloys Pvt. Ltd. and another Versus Paschimanchal Vidyut Vitran Nigam Ltd. and another).

Learned counsel for the respondents submits that in several matters identical questions are involved.

List this writ petition along with other similar matters. Learned Standing Counsel shall give a list of cases in which similar issues are related of the year 2009.

In view of interim order as already granted in writ petition No. 30582 of 2009, it is provided without prejudice to the right and contention of the parties that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 27.10.2009

AM/-

Court No. - 40

Case :- WRIT - C No. - 55892 of 2009

Petitioner :- M/S Quereshi Cold Storage And General Mills

Respondent :- Paschimanchal Vidyut Vitram Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

Sri Saroj Giri, Advocate holding brief of Sri Mayank Agrawal, learned counsel for the petitioner states that due to efflux of time, the writ petition has been rendered infructuous. He, therefore, prays that the writ petition be dismissed.

The writ petition is, accordingly, dismissed as having become infructuous. Interim order, if any, stands vacated.

Order Date :- 22.9.2022

GS

(Ajit Singh, J.) (Siddhartha Varma, J.)